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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN
MINISTRY OF WATER AND POWER

NOTIFICATION

Islamabad, the 10th November, 2015

S. R.O. 1110 (I)/2015.—In pursuance of sub-section (4) of section 31 of the Regulation of Generation, Transmission and Distribution of Electric Power Act, 1997 (XL of 1997), the Federal Government is pleased to direct that the following further amendment shall be made in its Notification No. S.R.O. 389(I)/2010, dated the 4th June, 2010, namely:—

In the aforesaid Notification, after Annexure-XLX the following new Annexures shall be added, namely:—

"Annexure-XLXI"

ATLAS POWER LIMITED
Quarterly Indexation/ Adjustment of Tariff

	Reference COD Decision 19 May 2010	Revised July Sep. 2015 Quarter
Capacity Charge (Rs./kW/Hour)		
Fixed O&M - Foreign	0.0962	0.1275
Fixed O&M - Local	0.1147	0.1480

(3723)

	Reference COD Decision 19 May 2010	Revised July Sep. 2015 Quarter
Cost of Working Capital	0.1970	0.1239
ROE	0.4312	0.5199
ROEDC	0.0464	0.0559
Debt Servicing	1.4734	1.2210
Total	2.3589	2.1962
Variable O&M (Rs./kWh)		
Variable O&M - Foreign	0.5075	0.6726
Variable O&M - Local	0.1634	0.2109
Total	0.6709	0.8835
Indexation Values		
Exchange Rate (Rs./USD)	84.350	101.700
US CPI (All Urban Consumers)	216.330	237.805
CPI (General) - Local	154.720	199.660
3 Monthly KIBOR	12.40%	7.01%
Principal Outstanding (Rs. Million)	13,968.41	8,843.12
Hours in the quarter	—	
2,208		

Note:—Insurance component of capacity charge is not part of quarterly indexation. It is adjusted annually on actual basis as per mechanism stipulated in the decision of the Authority.

Annexure-XLXII

ATLAS POWER LIMITED REIMBURSEMENT OF 7.5% WITHHOLDING TAX ON DIVIDENDS

Tax Challan #	payment Date	Dividend Amount agst. which Tax is Being Withheld	Tax Amount		Tax Amount Allowed	
			Rs.	Equivalent USD*	Rs.	Equivalent USD*
IT201502	21-May-15	198,750,000	14,642,682	144,834	13,064,338	128,333
IT201505	28-May-15	302,500,000	22,253,556	220,114	19,884,087	195,038
		501,250,000	36,896,237	364,948	32,948,425	323,371

*NBP TT & OD Selling Rate of USD as on 21st May, 2015 is Rs. 101.80 and as on 28th May, 2015 is Rs. 101.95

Carry Forward of Unclaimed Dividend Tax:

Balance brought forward USD
382,248

No. NEPRA/R/TRF-68/APL-2007/3138-3140 March 10, 2015

Less claimed:

6th Agreement Year -3rd interim dividend for FY 2014-15 (12.5%) (323,371)

(18 Dec. 2014 to 17 Dec. 2015)

Less un-claimable for 6th Agreement Year (3rd interim dividend) (58,877)

Balance Carried Forward

Out of 474 million paid-up Shares, 37.5 million and 35.5 million shares of National Bank of Pakistan and Allied Bank Limited respectively are exempt from withholding tax on dividends. Accordingly the carry forward of unclaimed withholding tax on dividends has been reduced to the extent of dividends paid to them.

[No.PII-2(11)/2007.]

SYED MATEEN HAMED
Section Officer (Tariff).